

ASCI Advertising Standards (5)

A. ASCI GENERAL CODE

ASCI Code Safety and Harmful Practices

Title: Advertisements Must Not Encourage Unsafe Practices

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter III Against Harmful Products/Situations, Clause 3.1

Plain English Summary:

Advertisements should not encourage or portray practices that are unsafe or harmful to consumers. For an Ayurvedic startup, advertising should not encourage consumers to misuse, overuse, or improperly consume a product in a manner that could create a health or safety risk.

The Exact Legal Text:

ASCI Code, Chapter III, Clause 3.1:

Advertisements shall not promote products or services which are hazardous or harmful to health or safety.

Keywords/Triggers:

unsafe advertising, harmful products, Ayurvedic product safety, unsafe consumption, health risk advertising, ASCI Chapter III, harmful product claims, consumer safety

ASCI Code Children and Vulnerable Consumers

Title: Protection of Children in Advertising

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter III Against Harmful Products/Situations, provisions relating to children

Plain English Summary:

Advertising directed at children must not contain material that could cause physical, mental, or moral harm or exploit children's vulnerability. This matters if an Ayurvedic brand markets products, supplements, foods, or wellness products specifically to children.

The Exact Legal Text:

The ASCI Code requires that advertisements addressed to children should not contain anything, whether in illustration or otherwise, that might result in their physical, mental or moral harm or exploit their vulnerability.

Keywords/Triggers:

children advertising, Ayurvedic products for children, child vulnerability, child safety advertising, harmful advertising, ASCI Chapter III, children's advertisements, child health claims

B. ASCI DISCLAIMER GUIDELINES VERY RELEVANT FOR AYURVEDIC CLAIMS

ASCI Disclaimer Guidelines Visibility and Readability

Title: Visibility and Readability of Advertising Disclaimers

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Guidelines for Disclaimers made in Supporting, Limiting or Explaining Claims made in Advertisements, Clause 4

Plain English Summary:

A disclaimer cannot be used as a hidden qualification to rescue a misleading main claim. Where a disclaimer is necessary, it must be sufficiently visible, readable and understandable to consumers. This is particularly relevant to Ayurvedic advertisements containing efficacy, comparison, or qualification statements.

The Exact Legal Text:

The ASCI disclaimer guidelines specify requirements concerning the **size, placement, duration and readability** of disclaimers. For advertisements carrying combination claims, interlinked claims or more than one claim in a frame, the relevant disclaimers are required to appear in the same frame as the claim.

Keywords/Triggers:

advertising disclaimer, Ayurvedic disclaimer, disclaimer visibility, claim qualification, disclaimer readability, supporting claim, ASCI disclaimer guidelines, misleading disclaimer

ASCI Disclaimer Guidelines Duration of On-Screen Disclaimer

Title: Minimum Display Duration for Video Disclaimers

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Guidelines for Disclaimers made in Supporting, Limiting or Explaining Claims made in Advertisements, Section X

Plain English Summary:

When a disclaimer appears on screen, consumers must be given enough time to actually read it. The guidelines specify minimum holding requirements and provide a general calculation based on the number of words in the disclaimer.

The Exact Legal Text:

In a single frame in an advertisement:

- i. There should not be more than one disclaimer. Provided, for an advertisement carrying combination claims, interlinked claims or more than 1 claim in a single frame, the disclaimers related to the said claims shall be published in the same frame as the claim.
- ii. The disclaimer should be restricted to two full length lines (unless as mentioned in Clause 4(c)(vi)) and remain on screen for AT LEAST 4 seconds for every line.

Keywords/Triggers:

disclaimer duration, video disclaimer, ASCI disclaimer timing, Ayurvedic TV advertising, on-screen disclaimer, four seconds, claim disclaimer, digital advertising

ASCI Disclaimer Guidelines Word Based Holding Time

Title: Duration Based on Disclaimer Length

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Guidelines for Disclaimers made in Supporting, Limiting or Explaining Claims made in Advertisements, Section X(B)

Plain English Summary:

For longer disclaimers, ASCI provides a method for calculating how long the disclaimer should remain visible. The general calculation is based on **5 words per second**, with an additional recognition period.

The Exact Legal Text:

In general, disclaimers should be held for a duration calculated at the rate of 5 words per second. An additional 'recognition period' should be added to the duration of hold calculated.

i. Where the disclaimers concerned contain:

(a) 9 words or fewer, the recognition period is 2 seconds; and

(b) 10 words or more, the recognition period is 3 seconds.

Keywords/Triggers:

disclaimer calculation, disclaimer timing, five words per second, recognition period, ASCI disclaimer rules, Ayurvedic advertising disclaimer, video claim disclaimer, disclaimer compliance